DataVault Technologies Pvt. Ltd.

Privacy Policy & Data Retention Schedule

Version 3.1 | Effective Date: 01 January 2024 | Last Reviewed: 01 October 2024

Section 1: Introduction and Scope

DataVault Technologies Pvt. Ltd. (hereinafter referred to as 'the Company', 'we', 'us', or 'our') is committed to protecting the privacy and personal data of its users, clients, and stakeholders. This Privacy Policy governs the collection, storage, processing, and deletion of personal data in compliance with India's Digital Personal Data Protection Act, 2023 (DPDP Act) and applicable international standards including the General Data Protection Regulation (GDPR).

This policy applies to all personal data collected through our web platform, mobile applications, APIs, customer support channels, and third-party integrations. By using our services, users acknowledge and consent to the data practices described herein.

Section 2: Categories of Personal Data Collected

2.1 Identity and Contact Data

We collect the following identity and contact information: full legal name, email address, phone number, date of birth, residential address, and nationality. This data is collected at account registration and may be updated by the user at any time through the account settings portal.

2.2 Financial and Billing Data

We collect billing information including invoice records, payment amounts, payment methods, transaction IDs, subscription plan details, and payment processor references. Payment card numbers are never stored directly; they are tokenised by our payment processors (Razorpay Pvt. Ltd., Stripe Inc., and PayU India) in accordance with PCI-DSS standards.

2.3 Activity and System Logs

We automatically collect system activity logs including login timestamps, IP addresses, device and browser information, geographic location derived from IP, actions performed on the platform (file downloads, profile updates, subscription changes), and failed authentication attempts. These logs are retained for security and fraud prevention purposes.

2.4 Third-Party Referral Data

When a user is referred to our platform by another individual, we collect limited information about the referrer including their name and email address solely for the purpose of processing referral rewards. This third-party referral information is classified as sensitive and must be masked or redacted in any data disclosure made to the referred user. Under no circumstances shall a user's data access request result in disclosure of another individual's personal data without that individual's explicit consent.

Section 3: User Rights Under DPDP Act 2023

Under the Digital Personal Data Protection Act 2023 and applicable regulations, users have the following enforceable rights with respect to their personal data:

Right of Access (Section 3.1): Users may request a complete copy of all personal data held by the Company. The Company must respond within 30 days of a verified request. The response must include the categories of data held, the purpose of processing, and the third parties with whom data has been shared, excluding the personal details of those third parties.

Right to Erasure (Section 3.2): Users may request deletion of their personal data. Upon receiving a verified erasure request, the Company shall delete or anonymise all personal data within 30 days, subject to the retention exceptions listed in Section 7 of this policy. Where retention exceptions apply, the user will be informed of the specific clause and the minimum retention period.

Right to Correction (Section 3.3): Users may request correction of inaccurate or incomplete personal data. The Company shall process correction requests within 15 days of identity verification and confirm the correction in writing.

Right to Nominate (Section 3.4): Users may nominate another individual to exercise data rights on their behalf in the event of death or incapacity, subject to legal verification of the nomination.

Section 4: Identity Verification Requirements

All data subject requests — whether for access, erasure, or correction — require verified identity before any action is taken or any data is disclosed. The Company shall not process or fulfil any data request from an unverified requester.

4.1 Verification Methods

Acceptable identity verification methods include: government-issued photo ID (Aadhaar, PAN, Passport, or Driving Licence), a one-time password (OTP) sent to the registered email or mobile number, or a video verification call with a designated Company representative.

4.2 Unverified Requests

Requests submitted without adequate identity verification shall be automatically rejected. The requester will receive a notification explaining the rejection and the steps required to resubmit with valid verification. No data shall be disclosed, modified, or deleted in response to an unverified request under any circumstance.

Section 5: Data Sharing and Third-Party Processors

The Company shares personal data only with trusted third-party processors under data processing agreements that require equivalent data protection standards. Current third-party processors include:

Razorpay Pvt. Ltd. (payment processing, India), Stripe Inc. (international payment processing), PayU India (payment processing, India), Amazon Web Services Inc. (cloud infrastructure and

storage), and HDFC Bank Payment Gateway (NEFT and RTGS processing).

Third-party processor data is not subject to user erasure requests directed at the Company. Users must contact processors directly to exercise rights over data held by processors.

Section 6: Data Security Measures

The Company implements industry-standard security measures including AES-256 encryption for data at rest, TLS 1.3 for data in transit, role-based access controls, multi-factor authentication for internal systems, regular penetration testing, and automated anomaly detection on activity logs. In the event of a data breach, affected users will be notified within 72 hours in accordance with DPDP Act obligations.

Section 7: Data Retention Schedule and Exceptions

The Company retains personal data only for as long as necessary for the purpose for which it was collected, or as required by applicable law. The following retention schedule is mandatory and supersedes any erasure request where a conflict exists.

7.1 Financial and Billing Records

Retention Period: 7 years from the date of transaction. All billing records, invoices, payment confirmations, and financial transaction data must be retained for a minimum of seven (7) years from the date of the transaction. This retention is mandatory under Section 128 of the Companies Act 2013 and the Income Tax Act 1961, which require maintenance of financial books and records for audit and statutory compliance purposes. Erasure requests that include financial records will result in partial fulfilment only — non-financial data will be erased while billing records will be anonymised at the end of the mandatory retention period. Users will be informed of this exception at the time of request.

7.2 Activity and Security Logs

Retention Period: 2 years from the date of the log entry. System activity logs including login records, IP addresses, device information, and user actions are retained for two (2) years for security monitoring, fraud investigation, and incident response purposes. This retention is justified under the Information Technology Act 2000, Section 67C, which mandates preservation of logs by intermediaries. Security logs related to suspended accounts or fraud investigations are retained for the full two-year period regardless of erasure requests.

7.3 Identity and Contact Data

Retention Period: Duration of account plus 90 days post-closure. Identity and contact data (name, email, phone, address, date of birth) is retained for the duration of the user's active account and for a grace period of ninety (90) days following account closure. After 90 days, all identity data is permanently deleted or fully anonymised. Erasure requests from active accounts will be processed only after account closure. Users requesting erasure must first close their account through the platform.

7.4 Referral Data

Retention Period: 1 year from date of referral or until reward is processed, whichever is later. Third-party referral information is retained only until the referral reward has been processed and confirmed, or for a maximum of one (1) year from the date of referral. This data is never disclosed to the referred user under any circumstances, including in response to data access requests.

7.5 Legal Hold Exception

Indefinite retention during active legal proceedings. Where personal data is subject to a legal hold, court order, regulatory investigation, or ongoing dispute, all standard retention periods are suspended and the data must be preserved in its original form until the legal matter is fully resolved. No erasure request can be fulfilled for data under a legal hold, regardless of the data category.

Section 8: Data Subject Request Process

Users may submit data subject requests through the following channels: the in-platform Data Request Portal at privacy.datavault.in, by emailing dpo@datavault.in with subject line 'Data Subject Request', or by writing to the Data Protection Officer at the registered company address.

Upon receipt, requests are logged with a unique Request ID and acknowledged within 48 hours. Identity verification must be completed before processing begins. Verified requests are processed within 30 days. Complex requests involving multiple systems may be extended by an additional 30 days with notification to the requester.

Section 9: Cookies and Tracking Technologies

The Company uses strictly necessary cookies for session management, analytics cookies to understand usage patterns, and preference cookies to remember user settings. Users may withdraw consent for non-essential cookies at any time through the Cookie Preferences centre. Withdrawal of cookie consent does not affect the lawfulness of processing based on consent before withdrawal.

Section 10: Policy Updates and Contact Information

This Privacy Policy is reviewed and updated at minimum annually or upon significant changes to data processing practices or applicable law. Users will be notified of material changes via email at least 30 days prior to the effective date of the change.

Data Protection Officer: Priya Nambiar | Email: dpo@datavault.in | Address: DataVault Technologies Pvt. Ltd., 14th Floor, Prestige Tech Park, Outer Ring Road, Bangalore - 560103, Karnataka, India.

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